

Law on Adult Education

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(Unofficial translation)

I. GENERAL PROVISIONS

Article 1 (Contents of the law)

In accordance with this Law, adult education comprises education, specialisation, training and the learning of persons who have completed the mandatory primary schooling and who wish to acquire, refresh, expand and deepen their knowledge without having formal pupil or student status.

The education of adults in primary schools, vocational schools, professional secondary schools, grammar schools and higher professional school education programmes is governed by laws regulating the respective fields, as well as by this Law.

The education of adults in higher education is governed by the law regulating the field of higher education.

Article 2 (Principles)

Adult education is based on the following principles:

- life-long learning;
- the accessibility of education to all under equal conditions;
- freedom and autonomy in one's choice of the path, contents, form, means and methods of their education;
- the secularity of adult education, which is performed as a public service;
- the professional and ethical responsibility of the educators;
- the respect for the personality and dignity of every participant;
- the achievement of the same standards in adult education providing publicly recognised qualifications as in the education of young people.

II. PARTICIPANTS IN ADULT EDUCATION

Article 3 (Participants in education)

Persons participating in adult education programmes has the status of participants in adult education.

Courses organised in accordance with publicly recognised educational programmes for adults may be attended by adults who meet the requirements regarding previous education and the special psychophysical skills prescribed for attendance.

Article 4 (Rights)

Participants in adult education has the right to professionally organised education; the right to participate in the management of the organisations in which they are educated, if this is envisaged in their founding acts; the right to study leave; and other rights stipulated in other regulations or collective agreements.

Article 5 (Expiry of status)

The status of participants in adult education expires when the participant successfully completes education or officially leaves the course.

III. EDUCATIONAL PROGRAMMES

Article 6 (Education contents)

In adult education, the participants acquire knowledge, skills and competence, and sometimes also publicly recognised qualifications.

Article 7 (Educational programmes)

Participants in adult education acquire knowledge, skills and competences through special adult education programmes and through parts of youth education programmes.

The programmes referred to in the previous paragraphs are programmes for raising the general educational and cultural level of the population, for functional literacy, for the improvement of knowledge required for work and occupations, for education and training of the unemployed, for education for democracy, for foreign language learning, for the learning of Slovene by foreigners, for education for quality of life, for education for the implementation of the special rights of minorities, adults with special needs and special groups, and for other types of general adult education.

The knowledge, skills and competences acquired through adult education programmes and other educational programmes approved in accordance with regulations which do not govern the field of education but for which the competent expert council has determined an equal educational standard, as well as through parts of youth education programmes which grant publicly recognised qualifications, are publicly recognised, which is certified with a public document.

Article 8 (Publicly recognised qualifications)

Publicly recognised qualifications are acquired through publicly recognised adult education programmes.

Publicly recognised qualifications may also be acquired through the examination and confirmation of knowledge, through examinations, and on the basis of the public documents referred to in the third paragraph of Article 7 of this Law.

Article 9 (Demonstration of knowledge through examination)

Adults may prove their knowledge, regardless of the method in which it was acquired, with the National Examination Centre.

When, in the cases referred to in the previous paragraph, adults prove knowledge acquired in educational programmes granting publicly recognised qualifications or in the parts of such programmes, the equality of the standards of knowledge examined and confirmed in the examination is determined by the competent expert council; in other cases it is determined by the Expert Council of the Republic of Slovenia for Adult Education.

Article 10 (Educational programmes)

The description of a publicly recognised adult education programme has a general and a special part:

a) The general part contains:

- the name of the programme;
- the scope of education provided in the programme;
- the requirements for enrolment in the programme, for progress and for the completion of the programme.

b) The special part contains subject-specific catalogues of knowledge and examination catalogues stating:

- the standards and contents of knowledge, skills and competences;
- the forms and methods of examination;
- the knowledge examined,
- the minimum number of hours of organised educational work and the extent of obligatory forms of educational work for participants,
- the knowledge required for the providers of the programme;
- the public recognition of the knowledge, skills and competences acquired through education according to the programme.

The scope and content of adult education programmes at primary school, lower and secondary vocational school, professional and technical secondary school, grammar school and higher professional school education levels is determined in accordance with laws regulating the respective fields.

Article 11 (Publication)

The adult education programme must be published before the official invitation to apply for enrolment.

IV. REQUIREMENTS FOR THE PERFORMANCE OF ADULT EDUCATION

Article 12 (Performance of the activity)

Adult education is performed by teachers, higher professional school lecturers, organisers of adult education and other professional employees of public universities, schools and their units, specialist organisations for adult education and other organisations registered for the performance of adult education (hereinafter: adult education organisations) and educational centres within companies, as well as by private individuals with the status of private instructor.

The status of adult education organisations is governed by the law regulating the organisation of education, unless otherwise stipulated in this Law.

Article 13 (Requirements for the performance of the activity)

Adult education organisations implementing publicly funded educational programmes must meet the following requirements:

- the professional employee organising education must have the appropriate higher education, pedagogical/andragogical education and a certificate of successful completion of the professional examination prescribed for the field of education (hereinafter: professional examination certificate);
- they must have at their disposal teachers and other expert workers meeting the requirements prescribed for individual fields of education;
- they must have at their disposal the premises and equipment prescribed for the implementation of individual education programmes.

The requirements for higher education courses and the minimum standards for premises and equipment are prescribed by the minister responsible for adult education (hereinafter: the Minister). In the process of preparation, the Minister must obtain the opinion of the competent expert body.

Article 14 (Entry in the register)

Adult education organisations implementing publicly recognised programmes and publicly financed programmes may begin to perform educational activities after they have been entered in the register maintained by the ministry responsible for adult education.

V. PUBLIC ADULT EDUCATION ORGANISATIONS

Article 15
(Foundation)

Public adult education organisations could be founded by local communities or by the state.

Public adult education organisations may be founded as public institutions or organised as organisational units within an educational institution or another institution or legal entity.

A public adult education organisation may be founded if the need is demonstrated and if the financing or co-financing of programmes which it is to implement is ensured.

Article 16
(Director, principal, unit head)

The manager and the andragogical head of an adult education organisation is the director.

A public adult education organisation which is organised as an organisational unit is headed by the principal or the unit head. The function of the principal may also be performed by an authorised employee of the legal entity of which the organisational unit forms a part.

The director, deputy director, principal and unit head must have a higher education and pedagogical/andragogical education, must be holders of a professional examination certificate, and must have at least five years of practical experience, including at least three years in adult education.

Article 17
(Expert bodies)

Expert bodies in public adult education organisations are:

- the andragogical council;
- the expert working group;
- the head of the educational field.

Article 18
(Andragogical council)

The andragogical council consists of professionals and teachers in the public adult education institution implementing adult education programmes.

The andragogical council:

- discusses and decides on professional issues connected with educational work;
- issues opinions on the annual working plan;
- decides on the modernisation of educational work;
- issues its opinion on the appointment of the director, principal or unit head;
- issues initiatives for the promotion of professionals and opinions on proposals issued by the director;
- carries out other duties in accordance with the law.

Article 19
(Expert working group)

The expert working group consists of professionals/organisers of education and teachers in an individual educational field.

The expert working group discusses issues related to individual educational fields, harmonises criteria for the examining and grading of knowledge and for the evaluation of educational and other work, issues proposals to the andragogical council for the improvement of educational work, discusses observations by participants in education, and performs other expert tasks prescribed in the annual working plan.

Article 20
(Head of the educational field)

The head of the educational field presides over the expert working group, plans and organises education, analyses educational work and its results, monitors the progress of participants in education, performs and organises educational counselling and advice, and performs other tasks prescribed in the annual working plan.

Article 21
(Association of adult education organisations)

Adult education organisations implementing publicly funded educational programmes may, with the purpose of achieving the realisation of common tasks in the development and promotion of adult education which is in the public interest, and of providing favourable conditions for co-ordination and co-operation between themselves, as well as for co-operation with other organisations and professional and administrative bodies, form associations.

VI. NATIONAL PROGRAMME OF ADULT EDUCATION

Article 22
(National Programme)

The public interest in adult education is defined by the National Programme of Adult Education, which is adopted by the National Assembly upon the proposal of the Government of the Republic of Slovenia.

Before the Government submits the proposal of the National Programme referred to in the previous paragraph to the National Assembly, it must obtain the opinion of the Expert Council of the Republic of Slovenia for Adult Education.

Article 23
(Contents)

The National Programme of Adult Education:

- defines the objectives of adult education;

- determines the priority fields of adult education;
- defines the activities necessary for the performance of adult education;
- determines the overall amount of public finances.

VII. ANNUAL PROGRAMME OF ADULT EDUCATION

Article 24 (Annual programme)

The implementation of the National Programme is governed by annual programmes adopted by the Government of the Republic of Slovenia.

Annual programmes determines publicly funded educational programmes, the amount and type of activities necessary for their implementation, the amount of resources to be provided from the state budget, and the ministries competent for the implementation of the programmes (hereinafter: the competent ministries).

Before the adoption of an annual programme referred to in the previous paragraph of this Article, the Government must obtain the opinion of the Expert Council of the Republic of Slovenia for Adult Education.

The educational programmes and activities referred to in the second paragraph of this Article include:

- primary school education programmes for adults who did not complete primary school, initial vocational educational programmes for adults who only completed primary school, the tenth year programme, i.e. a one-year course providing the completion of primary education for adults who do not intend to continue their education, and educational programmes referred to in the second paragraph of Article 7 of this Law;
- infrastructure activities in adult education comprising research, development and counselling, the development and maintenance of the information system, the publishing, preparation and monitoring of standards and norms, international co-operation, the development of the public service, the specialisation and training of adult education experts, and other tasks important for the development of adult education activities.

Annual programmes may also be adopted by local communities.

Article 25 (Providers)

Educational programmes referred to in the previous Article of this Law are implemented by public and other adult education organisations.

Educational programmes for obtaining the initial vocational educational qualification are implemented by schools and also by public and other organisations for adult education which meet the requirements prescribed for the implementation of these programmes.

Infrastructure activities determined in the annual programme are implemented by research and development organisations, higher education institutions and other organisations or individuals who meet the prescribed conditions.

Article 26
(Implementation of the annual programme)

The implementation of the annual programme is enabled by the competent ministries and foundations. To this end, they:

- decide on the allocation of programmes;
- publish annual invitations to tender for the implementation of annual programmes and conclude contracts;
- monitor the implementation of annual programmes and adopt measures necessary for their implementation;
- allocate funds for educational programmes and infrastructure activities;
- carry out other tasks determined in the annual programme.

Article 27
(Allocation of programmes)

In the allocation of programmes mentioned in the previous Article, the principles of the rational utilisation of educational capacities and the locality and accessibility of education are considered.

VIII. FUNDING

Article 28
(Sources)

Funds for the implementation of annual programmes are provided by the state budget, but also by local community funds (hereinafter: public funds) and other sources.

a) State budget

Article 29
(Amount of funds)

In accordance with the norms and standards and the amount of educational work, funds from the state budget are provided:

- for investments in public organisations for adult education founded by the state;
- for material costs and for investment maintenance and the renewal of premises and equipment in public adult education organisations founded by the state;
- to public adult education organisations for salaries, together with contributions and taxes, for andragogical and other expert workers/organisers of education, on the basis of the systematisation and fulfilment of posts of employment, in accordance with the law and the collective agreement, depending on the amount of educational work in accordance with educational programmes as determined in the annual plans of adult education;

- for the costs of the implementation of educational programmes, comprising funds for salaries, fees and material costs for the implementation of programmes, or parts of these costs when public funding is not guaranteed for educational programmes in their entirety, as well as for educational programmes which are co-financed up to at least one third from other sources;
- for the performance of infrastructure activities, comprising funds for salaries, fees and material costs;
- for other purposes determined in the annual programme.

b) Local community funding

Article 30 (Amount of funds)

Local communities ensure funds:

- for investments in adult education organisations founded by the local community;
- to cover extra-programme costs of adult education organisations founded by the local community, comprising at least the material costs of operation and investment maintenance, depending on the extent of educational work;
- for the implementation of educational programmes determined in the annual adult education programme adopted by the local community.

Article 31 (Standards and norms)

The standards and norms referred to in Article 29 are determined by the Minister. In the process of preparation, the Minister has to obtain the opinion of the competent expert council.

Article 32 (Public invitation to tender)

The implementers of the annual programme are selected by the competent ministries on the basis of a public invitation to tender.

For the implementation of an adult education programme, funds from the state budget may be allocated to an adult education organisation if the organisation provides evidence that at least one third of the funds necessary for the implementation of the programme is obtained from other sources.

The provision in the previous paragraph does not apply to the funding of primary education programmes and other educational programmes for which the annual programme so stipulates.

Article 33 (Contract)

The competent ministry concludes a contract with the implementer of the annual programme.

The contract on the implementation of educational programmes determines:

- the kinds and number of educational programmes and the number of participants or classes and educational groups;
- the number of teachers and other expert workers needed to implement the programme;
- the amount of funds allocated from the state budget and the timetable for their use;
- the methods of fulfilling the contractual obligations;
- other mutual rights and obligations.

The contract on the provision of educational infrastructure determines:

- the scope of educational infrastructure services and the method of its use;
- the amount of funds allocated from the state budget;
- the monitoring of the realisation of contractual obligations;
- other mutual rights and obligations.

With the contract on the preparation of a development project also:

- the contents and scope of the task or project;
- the preparation time;
- the expected results;
- the amount of funds allocated from the state budget;
- other mutual rights and obligations.

Article 34 (Contributions of participants in education)

In adult education wholly financed from public funds, adult education organisations cannot charge participants in education a contribution towards the costs of education.

In adult education co-financed from public funds, contributions by participants in education is reduced by the corresponding percentage.

Article 35 (Regulation on implementation)

Details on the methods and procedures for the public invitation to tender, the selection of providers, the financing, the co-financing, the subsidisation and the monitoring of the implementation of educational programmes and infrastructural activities is prescribed by the Minister.

IX. FUNDS

Article 36 (Funds)

For the financing of the annual programme, the state may found the Fund for Adult Education (hereinafter: the Fund).

The founding act of the Fund determines the sources, methods and requirements for the obtaining of funds for the realisation of the purpose for which the Fund was founded.

State budget funds for the financing of educational programmes are transferred to the Fund. The Fund may also obtain funds from other sources.

Public funds are allocated to the Fund in accordance with the norms and standards determined by the Minister.

Funds may also be founded by local communities and other legal entities and private individuals.

Article 37 (Board of management)

The operation of the Fund referred to in the previous Article is governed by the Board of Management, which consists of ten members. The members are appointed by the government upon a proposal by the minister responsible for adult education. The Board of Management consists of the representatives of the ministries, employers, trade unions and expert public.

The method of managing the Funds referred to in the fifth paragraph of the previous Article is determined by their founders in the founding act.

Article 38 (Fund status)

The Fund is a public legal entity.

The Fund operates in accordance with the law and other regulations which apply to public institutions.

Details on the organisation, tasks, methods of decision and other issues relevant to the performance of the professional and administrative activities of the Fund is laid down in the statute of the Fund.

Article 39 (Correct use of funds)

The funds in the Fund may only be used for the purposes for which the Fund was founded.

Article 40 (Reporting)

By the end of February each year the Fund must submit to its founder a report on its activities in the previous year.

Article 41 (Supervision)

The auditing and supervision of the Funds is performed by the Court of Auditors.

X. ORGANISATION OF EDUCATION

Article 42
(Annual plan of operation)

In adult education organisations which implement publicly recognised educational programmes and programmes financed, co-financed or subsidised from public funds, educational work is performed in accordance with an annual plan of operation containing:

- the envisaged amount and organisation of educational and other work during the year;
- the examinations timetable;
- the activities of the manager and expert bodies;
- co-operation with other organisations for adult education, with schools, societies and associations;
- other tasks.

Article 43

The organisations referred to in the previous Article must, in a special publication, present the educational programmes which they are implementing, as well as the organisation of their operation. These organisations also keep records of their work.

Article 44
(Enrolment)

Adults may enrol in education according to educational programmes determined in the annual plan on the basis of a public invitation to apply.

In the invitation, the following details are published:

- the requirements for enrolment in accordance with this Law, with the educational programme and with the rules of the adult education organisation;
- the number of vacancies;
- the methods and conditions of the implementation of education and the requirements for the successful completion of education;
- the public recognition of the educational programme;
- the amount of the contribution per individual participant in education, if the education is not wholly financed from public funds, or is only co-financed or subsidised.

The invitation referred to in the previous paragraph must be published not less than one month before the beginning of education.

Detailed provisions regarding enrolment and the realisation of the invitation to apply are determined by the Minister.

Article 45
(Limited enrolment)

If more candidates apply than there are vacancies in the educational programme, the candidates are selected on the basis of the level of fulfilment of the requirements important for the type of education in which they are enrolling and which were stated in the invitation to apply.

Article 46
(Contract of enrolment)

Adults may also enrol in educational programmes which are not financed, subsidised or co-financed from public funds on the basis of a contract which they conclude with the adult education organisation.

Article 47
(Other special features of educational organisations)

The timetable of education in an academic year and the educational work for individual days and weeks in adult education may be organised differently than is envisaged in the school calendar.

An educational organisation must at least twice a year publish timetables for examinations in the educational programmes which it implements.

The duration of education, the sequence of individual study subjects or subject fields, the methods and forms of examination and grading of knowledge, and the participants' progress are adjusted to the characteristics, needs and possibilities of the participants in adult education.

XI. NATIONAL EXAMINATION CENTRE

Article 48
(Competences)

The National Examination Centre:

1. prepares prospectuses and standards of knowledge, skills and competences whose mastery is the requirement for the obtaining of the public certificate;
2. organises tests of knowledge and for this purpose:
 - forms examination commissions for individual educational fields and organises training for their members;
 - prescribes timetables, places and requirements for tests of knowledge and keeps records of these tests;
 - issues certificates of successfully completed tests of knowledge;
3. ensures the inclusion and integration of the system of obtaining publicly recognised education or individual areas of knowledge in international certificate systems, and the co-ordination of educational standards with the standards of these systems.

Article 49
(Regulation on implementation)

Details of the method of keeping the records and the forms and contents of the certificates of tests of knowledge are determined by the minister responsible for adult education.

XII. RECORDS, DOCUMENTATION AND PERSONAL DATA PROTECTION

Article 50

(Application of regulations on personal data protection)

Adult education organisations collect, process, store, communicate and use data contained in databases kept in accordance with regulations on personal data protection, unless this Law specifies otherwise.

Article 51 (Types of databases)

Adult education organisations maintains the following databases:

1. the collection of data on participants in education;
2. the collection of data on the progress of participants in education, issued certificates and other documents.

The database under Point 1 above contains data regarding the participant in education: first and last names, sex, date, place and country of birth, residence and citizenship, and the phone number at which it is possible to communicate urgent messages.

The database under Point 2 above contains, in addition to the data described in the previous paragraph, data on the progress of the individual participant in education, and on issued certificates and other documents.

Records described in this Article are kept permanently.

Article 52 (Method of data collection)

The data referred to in the previous Article is collected directly from the individuals to which it refers.

Article 53 (Purpose and use of databases)

Personal data on participants in education from databases referred to in Article 51 is collected, processed, stored and used for the purposes of educational work and is communicated to competent ministries for the implementation of tasks stipulated in law.

For the needs of scientific research and the production of statistical analyses, the personal data may be used and published in a method which does not reveal the identity of the participant in education.

Article 54 (Documentation)

Adult education organisations keep the following documentation:

- records on course obligations fulfilled;
- records of examinations conducted;

- minutes of meetings of examination committees;
- public documents.

Article 55 (Regulation on implementation)

Detailed instructions on the method of data collection, on experts within the adult education organisation authorised to use the data in individual databases, on the method of recording the use and communication of personal data, and the method of their destruction after their term of use has expired, other procedures and data protection measures are prescribed by the Minister.

XIII. PENAL PROVISIONS

Article 56 (Violations and punishment)

A legal entity or private individual is liable to a fine of at least SIT 200,000 if:

- they do not perform educational work in the scope defined in the educational programme;
- educational work is performed by expert workers who do not fulfil the requirements stipulated in the law or in the educational programme;
- they spend public funds in violation of the contract referred to in Article 33 of the Law;
- they require of participants in education to pay a contribution to cover the costs of education in violation of the provisions of Article 34 of this Law;
- do not provide for the preparation of the annual plan of work of the adult education organisation, or do not organise the work in accordance with the plan;
- enrol adults in violation of the provisions of this Law pertaining to the enrolment in adult education;
- do not maintain documentation and keep records in accordance with the provisions of this Law.

The responsible individual in the legal entity committing a violation from the previous paragraph is liable to a fine of at least SIT 50,000.

XIV. SUPERVISION

Article 57 (Supervision)

Supervision in adult education is conducted in accordance with the law governing school inspection.

XV. TRANSITIONAL AND FINAL PROVISIONS

Article 58 (Expert workers)

Expert workers who, at the time this Law enters into force, do not meet the qualification requirements stipulated in this Law may continue to work in adult education if, within five years of this law entering into force, they obtain the prescribed qualifications.

Regardless of the provisions of the previous paragraph, the worker whose qualifications are one level below the requirements stipulated in this Law but who has at least twenty years' experience in education when the Law enters into force may continue working in adult education.

The expert worker who has not obtained a pedagogical/andragogical education or passed the professional examination by the time this Law enters into force may continue working in adult education if he/she obtains a pedagogical/andragogical education or passes the professional examination within a period of two years.

Article 59

Notwithstanding the provision contained in the third paragraph of Article 16 of this Law, a person who does not meet the qualification requirements stipulated in this Law may be appointed director, deputy director, principal or unit head until 1 September 2000.

The person who is appointed director, deputy director, principal or unit head in accordance with the previous paragraph must obtain the qualifications prescribed in this Law by 1 September 2002.

The mandates of directors, deputy directors, principals or unit heads who do not fulfil the obligations from the previous paragraph expires in accordance with the law.

Article 60 (Regulations on Implementation)

The Minister issues regulations on implementation for this Law within one year of its entry into force.

Article 61 (Entry into force)

This Law enters into force on the fifteenth day after its publication in the Official Gazette of the Republic of Slovenia

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Ljubljana, 14 February 1996

Chairman
of the National Assembly
of the Republic of Slovenia
Jožef Školč